

CV-24-002128 HEARD, LATRISHA vs CENTRAL VALLEY SPECIALTY HOSPITAL – Defendant’s Motion for Summary Judgment, or in the Alternative, Summary Adjudication of Issues – DENIED, in part, GRANTED, in part.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: As a preliminary matter, the Court notes that Defendant did not respond to Plaintiff’s additional statement of material facts in dispute. Civ. Proc. Code § 437c (b)(3) &(5); California Rules of Court, rule 3.1350. The court exercises its discretion not to deny Defendants’ motion based on this procedural deficiency. Civ. Proc. Code § 437c; Sec. Pac. Nat. Bank v. Bradley, (1992) 4 Cal. App. 4th 89). The court finds that triable issues of material facts exist regarding Plaintiff’s cause of action for elder abuse/neglect as to the adequacy of custodial care, Defendants provided to decedent, breach and causation. Particularly, in relation to decedent’s skin condition on admission, the timing of decedent’s wound development, Defendant’s compliance with turning and repositioning protocols, as well as the adequacy of Defendant’s wound assessment and follow-up care and treatment. (Defendants’ Undisputed Material Facts Nos. 5-56, Declaration of Dr Bressler, Declaration of Dr. Woelfel, Plaintiff’s Responses to Defendants’ Undisputed Material Facts Nos. 4, 16, 22, 24, 26, 32, 34, 35, 37, 39, 42-45, 50, 52, 57, 59, 65-76; Declaration of Dr. Saba, Plaintiff’s Additional Material Facts Nos 1-11, Plaintiff’s Exhibits 3-9, 14-17) On the same bases, triable issues of material fact exist as to Plaintiff’s causes of action for negligence and wrongful death. Accordingly, Defendant’s Motion for Summary Judgment is denied. Summary adjudication is denied as to Issues One, Three, Four, Five Six and Seven and granted as to the punitive damages allegations (Issues Two and Eight). The extensive evidence of interventions in the record, with multiple wound consults, air mattress orders, the prescription of medication for the wounds, debridement etc, as against the lack of detailed compliance in the record serve to prevent the escalation of Plaintiff’s claims from neglect/negligence to recklessness and make punitive damages unavailable here. Defendant’s Evidentiary Objections are overruled. Defendants’ objections largely attack the weight, persuasiveness, or ultimate conclusions of Dr. Saba’s opinions rather than their admissibility. Furthermore, medical reports are typically relied on by medical experts in these types of cases as did Defendants’ own experts Doctors Woelfel and Bressler.

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On the same bases, triable issues of material fact exist as to Plaintiff’s causes of action for negligence and wrongful death.

Accordingly, Defendant's Motion for Summary Judgment is denied.

Summary adjudication is denied as to Issues One, Three, Four, Five Six and Seven and granted as to the punitive damages allegations (Issues Two and Eight). The extensive evidence of interventions in the record, with multiple wound consults, air mattress orders, the prescription of medication for the wounds, debridement etc, as against the lack of detailed compliance in the record serve to prevent the escalation of Plaintiff's claims from neglect/negligence to recklessness and make punitive damages unavailable here.

Defendant's Evidentiary Objections are overruled. Defendants' objections largely attack the weight, persuasiveness, or ultimate conclusions of Dr. Saba's opinions rather than their admissibility. Furthermore, medical reports are typically relied on by medical experts in these types of cases as did Defendants' own experts Doctors Woelfel and Bressler.